

RIGHT TO INFORMATION APPLICATION

Under Section 6(1) of the Right to Information Act, 2005

Date: 22.12.2025

To:

**The Public Information Officer (PIO)
Office of the Registrar General
Delhi High Court
Sher Shah Road, New Delhi - 110503**

APPLICANT DETAILS

Name Kesar Kanjhlia

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SUBJECT:

Seeking statistical and anonymized case data relating to Motor Accident Claims Tribunals (MACTs) functioning under the jurisdiction of Delhi High Court for the purpose of academic research/policy analysis.

INFORMATION SOUGHT

1. PENDING CASES (As on current date)

Please provide the following data in tabular format for all MACTs under jurisdiction of Delhi High Court

a) Total number of MACT cases currently pending, segregated by:

- District/Court Complex (Tis Hazari, Karkardooma, Patiala House, Rohini, Saket, Dwarka, etc.)
- Individual MACT Court Number
- Year of filing (2015 onwards, year wise breakup)
- Case type: Death claims, Injury claims, Property damage claims

b) Total number of cases pending for more than 3 years, with:

- District-wise and MACT court-wise breakup
- Primary reasons for delay categorized as:

- Claimant/victim non-cooperation or non-appearance
- Missing or incomplete documentation (specify type: medical records, FIR, driving license, RC, etc.)
- Adjournments granted (indicate on whose request: claimant, respondent, insurance company)
- Non-compliance of Section 158(6) of Motor Vehicles Act, 1988 (Accident Information Report not filed within 30 days)
- Witness examination/evidence pending
- Any other reason (specify)

2. DISPOSAL STATISTICS

Please provide data for **Financial Years 2020-21 to 2024-25** in tabular format:

a) Total number of cases disposed of (year-wise, district-wise, MACT-wise), categorized by:

- Death claims and Injury Claims
- Method of disposal:
 - Contested cases (after full trial)
 - Settled cases (through compromise/settlement in Lok Adalats)
 - Cases decided on fault liability basis
 - Cases decided on no fault liability basis
 - Cases dismissed for non-prosecution

b) Cases disposed under Fast Disposal of Accident Reports (FDAR) Scheme / Claims Tribunal Agreed Procedure (CTAP) / Modified Claims Tribunal Agreed Procedure (MCTAP) as per Supreme Court directions in *Rajesh Tyagi v. Jaibir Singh* (2009) and Order dated 08.01.2021.

3. TIME TAKEN FOR DISPOSAL

For cases disposed during **FY 2020-21 to 2024-25**, please provide:

a) Average time (in months) from filing to final award for:

- Death claims
- Injury claims
- Overall MACT cases

b) Category wise average disposal time:

- Contested cases vs. Settled cases
- Fault liability cases vs. No-fault liability cases (Section 140)
- FDAR/CTAP/MCTAP cases vs. Regular cases

c) Compliance with Supreme Court Targets:

- Number and percentage of cases disposed **within 120 days** (for FDAR/CTAP/MCTAP cases)
- Number and percentage of cases disposed **within 6-12 months** (for standard MACT cases as per *Rajesh Tyagi* Order dated 08.01.2021)
- Cases taking **more than 2 years** for disposal (number and percentage)
- Cases taking **more than 5 years** for disposal (number and percentage)

4. FDAR/CTAP/MCTAP SCHEME COMPLIANCE

a) Number of cases registered under **FDAR/CTAP/MCTAP scheme** (FY 2020-21 to 2024-25, year-wise)

b) Number of cases where:

- **Detailed Accident Report (DAR)** was filed by police within **30 days** (as per scheme)
- DAR filing was delayed beyond 30 days (average delay period)

c) Number of cases where insurance company:

- Settled claim within 30 days of receiving DAR
- Contested/challenged the claim

d) Court-wise data on implementation status: Which MACT courts are actively implementing the FDAR/CTAP/MCTAP scheme

FORMAT OF INFORMATION REQUESTED

1. Anonymized case data should exclude personal identifiers (names, addresses, vehicle numbers) while clearly indicating year, MACT court, age, income, disability %, and compensation
2. If information is voluminous, please provide on **CD/pen drive** (I am willing to pay additional reasonable charges as per Delhi High Court RTI Rules)

DECLARATION

I, Kesar Kanjhliya, an Indian Citizen, hereby declare that the information sought is for academic research/policy analysis purpose and not for commercial use. I shall use this information in accordance with the provisions of RTI Act, 2005.

I am enclosing an Indian Postal Order for Rs 10 towards the application fee. I undertake to pay any additional fees required for providing the information.

Kindly provide the information in tabular/Excel format via email to the address given below.
If soft copy is not possible, please send in hard copy through registered post.

RELIEF SOUGHT

1. Kindly provide the information within **30 days** as mandated under Section 7(1) of RTI Act, 2005
2. If information is held by subordinate MACT courts, kindly transfer application to concerned PIOs under Section 6(3)
3. If any exemption under Section 8 or 9 applies, please specify exact clause with reasons
4. All communications may be sent to my email and postal address mentioned above

Place: Delhi

Date: 22.12.2025

Signature of Applicant

Name: Kesar Kanjhlia